PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PLTA-26-4 / Amending Section 9.12.080 of Municipal Code – Electric Fence prohibitions exceptions
Date: October 12, 2026

Background:
The item for consideration is a Municipal Code Amendment. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/12/2026
- Public Services Committee 10/19/2026
- Second reading 10/26/2026
- Public Services Committee 11/2/2026
- Third and final reading 11/9/2026

Staff Summary:
The proposed amendment would change 9.12.080 of Municipal Code to allow for electric fences for livestock control. This is one of four agriculture-related ordinances.

Public Comment
As of the creation of this memo (October 7, 2026), Staff has received no inquires or comments from the public related to the proposed amendment. The four Ordinances combined have received 1,098 views on the PublicInput page and 10 comments. Comments received do not address this proposed amendment directly. Comments are attached.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Comments

APPROVED as to form only:
By John Brodie at 1:58 pm, Sep 21, 2026

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 9.12.080 OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO ALLOW ELECTRIC FENCING FOR CERTAIN AGRICULTURAL AND LIVESTOCK USES."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 9.12.080, Electric Fences Prohibited, of Chapter 9.12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, is amended to read as follows:

9.12.080 Electric fences prohibited.

No person shall place or permit to be placed or allow to remain a fence containing uninsulated electric conductors that may be exposed to human contact anywhere within the city except as noted below.

A. Low voltage (twelve (12) volts) may be utilized for goat control and safety for vegetation management in project-specific locations identified and approved by the city of Cheyenne.

   1. Electric fencing adjacent to pedestrian areas (i.e., defined pedestrian paths or trails) shall only [be] electrified at night and not during any daylight hours.

B. Electric fencing used for the containment or management of livestock areas where agriculture or grazing use is lawfully permitted, provided the fencing is not located within a public right-of-way, a public sidewalk, trail, or pedestrian easement. Warning signs shall be posted at reasonable intervals not exceeding one hundred (100) feet along fence lines adjacent to public areas and at all gates or access points. Electric fencing permitted under this subsection shall be maintained in a safe condition consistent with standard agricultural practices.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

_____
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

_____
KYLIE SODEN, CITY CLERK

Published:_____
Wyoming Tribune-Eagle

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10/5/2026

The Honorable Mayor Collins and Members of the Cheyenne City Council
c/o Chief of Staff Amber Ash
2101 O'Neil Avenue
Cheyenne, WY 82001

RE : Wy Fresh Farms/David and Tommie Kniseley Annexation

Dear City of Cheyenne:

In anticipation of the November 9, 2026 vote on the Third and Final Reading of the Annexation Ordinance which may incorporate WyFresh Farms ("Farm") into the City of Cheyenne, we are asking that the following issues be addressed in a comprehensive manner before that meeting.

The following are the items that need to be addressed. We want to work cooperatively with the City to seek urban farm definition and ordinances that support WyFresh Farms and allow it to continue as a working farm with farmstand and to promote future growth of the Farm. We look forward to following the city's directive that "the City's intent is to allow WyFresh to continue to operate, expand within code and thrive as an agricultural enterprise within the city limits."

1) An Ordinance that clearly defines Urban Farm and includes the language the Right to Farm Act specifically stating that farm operations are not considered a public or private nuisance as long as the farm operation conforms to generally accepted agricultural management practices. This Ordinance shall include livestock (as defined in W.S. 11-6-302(a)(vi), guardian dogs, terrier dogs for rodent control, barn cats, and other farm animals. It should also provide for expansion within the boundaries of the annexed property.
2) An Ordinance that permits the use of installation of electric fence on the property which may be constructed in a manner regarding the size, structure and placement which will keep predators at bay.

3) An Ordinance which allows for the annual movement of temporary structures including but not limited to caterpillar tunnels, hoop houses and low tunnels used for growing products on the property without further permitting during any given year.
4) An Ordinance that includes the Farmstand's continued operation and does not unreasonably limit the number of customers or vehicles that may access the Farmstand per year.
5) Ordinances which modify the need to clean trash on the borders, especially those borders where the trash comes from outside the boundaries of WyFresh's property.
6) City of Cheyenne commits to conducting drainage studies to deal with the drainage that is coming from offsite improvements onto the WyFresh property which damages the fences and the land.
7) City of Cheyenne completing the work on the City damaged fences on the east side of the property as well as the southwest of the property. WyFresh would like to have this matter addressed promptly in accordance with the offer and response that was made by Doug Klahn in February. (see attached). WyFresh would like to partner with the City for additional fencing to ameliorate the problems with not being able to use firearms to fight predators.
8) City of Cheyenne installing barriers to prevent vehicles from causing damage to the fences on the property.

We are asking that drafts of the pertinent ordinances and code be provided by mid-June to ensure that they could be passed in time for WyFresh to believe that the true meaning of Urban Farm is captured and that the rights that they have as a farm are being preserved. We understand from some of our meetings and representations made at City Council meetings and Committee hearings, that the language for most of these issues have already been drafted.

We look forward to working with you cooperatively to make annexation a favorable choice for WyFresh farms.

Respectfully submitted,

Gay Woodhouse

Request for Amendments to Rules Regarding Agriculture
10/05/2026
WY Fresh Farm, 200 Walterscheid Blvd, Cheyenne

Amend 6.08.090 Add C. = "This section shall not apply to any working farm."

Amend 6.08.110 Add "except as provided by WY Statute 11-44-103"

Amend 6.08.030 C Add #5 Livestock Guardian Dogs, Rodent Control Dogs and Barn Cats

Amend 6.08.070 Add "This section shall not apply to any Livestock Guardian Dog."

Amend 8.60.035 Add "This section shall not apply to any working farm."

Amend 8.60.030 Add "except as is consistent with WY Statute 11-44-103"